

CREDIT AGREEMENT

Dated as of 15 January 2026

among **CYPRESS DISTRESSED HOLDINGS, LLC**, a Delaware limited liability company, as the Borrower, **CYPRESS PARENT L.P.**, a Cayman Islands exempted limited partnership, as Parent Guarantor, the several banks and other financial institutions or entities from time to time parties hereto, as Lenders, and **MERIDIAN CAPITAL PARTNERS AGENCY SERVICES LLC**, as Administrative Agent, with **MERIDIAN CAPITAL PARTNERS SECURITIES LLC** acting as Sole Lead Arranger and Sole Bookrunner.

ARTICLE I — DEFINITIONS AND ACCOUNTING TERMS

"Borrower" means Cypress Distressed Holdings, LLC. **"Facility"** means the Term Loan B Facility described in Section 2.01. **"Effective Date"** means 15 January 2026. **"Maturity Date"** means 15 January 2031, being the fifth anniversary of the Effective Date. **"Applicable Margin"** has the meaning set forth in Section 2.04(b) and is subject to adjustment based on the Consolidated Total Leverage Ratio. **"Consolidated EBITDA"**, **"Consolidated Interest Expense"**, **"Consolidated Total Debt"** and other financial defined terms have customary meanings.

ARTICLE II — THE CREDIT FACILITY

Section 2.01. Term Loan B Commitment. Subject to the terms and conditions of this Agreement, each Lender severally agrees to make one term loan in Dollars to the Borrower on the Effective Date in the aggregate principal amount of **ONE HUNDRED FIFTY MILLION DOLLARS (\$150,000,000)** (the "Term Loan" or the "Loans"). The Loans shall be advanced in a single drawing on the Effective Date and, once repaid, may not be reborrowed.

Section 2.02. Purpose. The proceeds shall be applied solely (i) to refinance existing senior secured indebtedness, (ii) to fund a \$30,000,000 distribution to the Parent, and (iii) for general corporate purposes.

Section 2.03. Maturity. The Term Loan shall mature and be due and payable in full on the Maturity Date. There is no scheduled amortization of principal prior to Maturity (i.e., a bullet repayment structure).

Section 2.04. Interest.

(a) The Loans shall bear interest at a rate equal to (i) **Term SOFR** for the relevant three-month Interest Period plus (ii) the Applicable Margin. Interest shall be computed on the basis of actual days elapsed over a 360-day year (**ACT/360**). There shall be no interest rate floor on Term SOFR (0 bps floor).

(b) The Applicable Margin shall be determined by reference to the Borrower's Consolidated Total Leverage Ratio:

Consolidated Total Leverage Ratio	Applicable Margin (bps)
> 4.5x	425
<= 4.5x and > 4.0x	400
<= 4.0x and > 3.5x	375
<= 3.5x	350

(c) At closing on the Effective Date, the Applicable Margin shall be **+425 bps**, reflecting the Borrower's estimated pro forma Consolidated Total Leverage Ratio of 5.4x.

Section 2.05. Fees.

(a) **Arrangement Fee.** The Borrower shall pay to the Lead Arranger on the Effective Date an upfront arrangement fee equal to **2.00% of the aggregate principal amount** of the Term Loan (\$3,000,000), fully earned and non-refundable, to be amortized over the life of the Loan pursuant to the effective interest rate method.

(b) **Agency Fee.** The Borrower shall pay to the Administrative Agent an annual agency fee of **\$75,000**, payable in advance on the Effective Date and on each anniversary thereof.

(c) **Prepayment Premium.** Voluntary prepayments made on or prior to the first anniversary of the Effective Date shall be subject to a 1.00% prepayment premium. No premium thereafter.

ARTICLE III — MANDATORY PREPAYMENTS

Section 3.01. Change of Control. Upon the occurrence of a Change of Control, the Borrower shall, within five (5) Business Days, prepay **100% of the outstanding Loans** plus accrued interest and any Prepayment Premium.

Section 3.02. Asset Sales. Within ten (10) Business Days following receipt by the Borrower of Net Proceeds from any Asset Sale in excess of \$5,000,000 in the aggregate in any fiscal year, the Borrower shall prepay the Loans in an amount equal to **100% of such Net Proceeds**; provided that Net Proceeds may be reinvested in productive assets within 12 months of receipt.

Section 3.03. Insurance and Condemnation Proceeds. The Borrower shall prepay the Loans with 100% of Net Proceeds from insurance recovery or condemnation events, subject to reinvestment rights.

Section 3.04. Excess Cash Flow. Within ninety (90) days after the end of each fiscal year, the Borrower shall prepay the Loans in an amount equal to the ECF Percentage of Excess Cash Flow for such fiscal year:

Consolidated Total Leverage Ratio	ECF Sweep %
> 4.0x	50%
<= 4.0x and > 3.5x	25%
<= 3.5x	0%

Section 3.05. Debt Incurrence. The Borrower shall prepay with 100% of Net Proceeds of any Indebtedness incurred in violation of Section 6.03.

ARTICLE VI — FINANCIAL COVENANTS

The Borrower covenants that, so long as any Loans remain outstanding, it shall comply with each of the following financial maintenance covenants, tested on a quarterly basis based on the four most recently ended fiscal quarters:

Section 6.01. Maximum Consolidated Total Leverage Ratio. The Consolidated Total Leverage Ratio shall not exceed the ratios below:

Test Period Ending	Maximum Leverage
Effective Date through 31-Mar-2027	6.00x
30-Jun-2027 through 31-Mar-2028	5.50x
30-Jun-2028 through 31-Mar-2029	5.00x
30-Jun-2029 and thereafter	4.50x

Section 6.02. Minimum Interest Coverage Ratio. The Consolidated Interest Coverage Ratio (EBITDA / Cash Interest Expense) shall not be less than **2.50 to 1.00**.

Section 6.03. Minimum Liquidity. The Borrower shall maintain **Unrestricted Cash + revolver availability of not less than \$10,000,000** at all times.

Section 6.04. Equity Cure. If the Borrower fails to comply with any Financial Covenant, the Parent may within ten (10) Business Days make a cash equity contribution, deemed to increase EBITDA for that test period. Limited to five exercises during the Facility, no more than two in any four consecutive quarters.

ARTICLE VIII — EVENTS OF DEFAULT

- Failure to pay principal when due (no grace period).
- Failure to pay interest, fees, or other amounts within three (3) Business Days of the due date.
- Breach of any Financial Covenant set forth in Article VI (subject to Equity Cure rights).
- Breach of any other affirmative or negative covenant, unremedied for thirty (30) days after written notice.
- Any representation or warranty proves incorrect in any material respect when made.
- Cross-default to Indebtedness in excess of \$10,000,000 in the aggregate.
- Voluntary or involuntary bankruptcy, insolvency, or reorganization of the Borrower or the Parent Guarantor.
- Entry of an unstayed judgment in excess of \$10,000,000.
- Any Change of Control not consented to by the Required Lenders.
- The occurrence of any Material Adverse Change.

ARTICLE X — GOVERNING LAW; JURISDICTION

This Agreement and all claims arising out of or relating to it shall be governed by, and construed in accordance with, the laws of the **State of New York**, without regard to conflicts of laws principles. Each party irrevocably submits to the exclusive jurisdiction of the courts of the State of New York and of the United States sitting in the Borough of Manhattan, City of New York.

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